

Sales Contract - Kaufvertrag



A **sales contract** is a legally binding agreement made between a seller and a buyer to exchange goods for money.

Inquiry (Anfrage): Many business transactions start with an inquiry relating to goods. This is usually a letter addressed to a supplier (or seller) by a prospective customer.

Offer (Angebot): By submitting an offer the seller declares his willingness to sell certain goods at certain prices and on certain terms.

Order (Bestellung): An order may be defined as a request by a prospective customer to a seller to supply goods. Orders are placed (= made) either in response to an offer or on the buyer's own initiative.

Confirmation of order (Auftragsbestätigung): The confirmation constitutes the formal acceptance of the order, resulting in a contract between the buyer and the seller. The confirmation involves a repetition of the essential points of the order. A confirmation of an order is not always necessary.

Delivery (of goods) (Lieferung [von Waren]): The time, place and mode of delivery are stipulated in the sales contract.

Invoice (Rechnung): An invoice is a commercial document issued by a seller to a buyer, indicating the products, quantities and agreed prices for products or services with which the seller has already provided the buyer.

Payment (Zahlung): The time, method, and place of payment as well as any discounts (= the terms of payment) are stipulated in the sales contract.

Note: A list of vocabulary is on the following page

Exercise – work with a partner:

1. One of you is the buyer, the other one is the seller. The buyer is interested in one of the products in the XXX Lutz folder.
2. Write a short dialogue which covers all the steps to the conclusion and fulfilment of the sales contract. (A confirmation of the order is not necessary – it can be omitted.) Use the speech bubbles on the next side for your notes.
3. Make a little role play: present your dialogue in class!



Vocabulary

English	German
sales contract	Kaufvertrag
legal	gesetzlich, gültig
agreement	Vereinbarung, Abmachung
seller	Verkäufer
buyer	Käufer
inquiry	Anfrage
business transaction	Geschäftsfall
supplier	Anbieter, Lieferant
prospective customer	potentieller/ möglicher Kunde, Interessent
offer	Angebot
to submit	unterbreiten, einreichen
terms	Bedingungen
order	Bestellung, Auftrag
request	Antrag, Verlangen
to supply (goods)	(Waren) liefern
to place an order	bestellen
confirmation of order	Auftragsbestätigung
to constitute	begründen, darstellen
to result in	zu etwas führen
to involve	mit sich bringen, einschließen
to stipulate	vereinbaren, vertraglich festsetzen
mode	Art
delivery	Lieferung
to issue (an invoice)	(Rechnung) ausstellen
to indicate	bezeichnen, angeben
to provide with	beliefern, versorgen, ausstatten
in advance	im Voraus
to pay in advance	voraus bezahlen
due	fällig, zahlbar
discount	Preisnachlass (Skonto, Rabatt)
terms of payment	Zahlungsbedingungen
conclusion of a contract	Abschluss eines Vertrags
fulfilment of a contract	Erfüllung eines Vertrags

Dialogue – Sales Contract:

Buyer: _____

Seller: _____

(Enter the names of the buyer and the seller.)

Inquiry:

_____:

_____:

_____:

_____:

_____:

